

24VECV01951 24VECV01951

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-09-04

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C09%2F04%2F2026

Source SHA-256: 23d0585c0cf2b1fad05a48479820e3774806add938705e5f39449d199949bd15

Case Number: 24VECV01951 Hearing Date: September 4, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Carlos P Cruz Tellez,

Plaintiffs,

v.

Ford Motor Company

Defendants.

Case Number Department

24VECV01951 107

COURT'S [TENTATIVE] RULING RE:

Motion

for Attorney Fees

[Tentative:]

Grant in the reduced sum of
\$26,080.90.

I.

BACKGROUND

On or about December
26, 2022, Plaintiff Carlos P Cruz Tellez ("Plaintiff") purchased a 2022 Ford Expedition (the "Vehicle"). (Complaint ¶ 6.) The Vehicle was defective.
(Complaint ¶¶ 11-12.)

On April 26, 2026,
Plaintiff filed a complaint against Defendants Ford Motor Company and Does 1 through 50, alleging causes of action for: (1) violation of subdivision (d) of Civil Code section 1793.2; (2) violation of subdivision (b) of Civil Code section 1793.2; (3) violation of subdivision (a)(3) of Civil Code section 1793.2; (4) breach of express written warranty Civil Code section 1791.2, subdivision (a); section 1794; (5) breach of the implied warranty of merchantability Civil Code section 1791.1; section 1794.

On April 1, 2026,
Plaintiff filed a notice of settlement of entire case.

On June 15, 2026,
Plaintiff filed a memorandum of costs (the "Memorandum").

On July 31, 2026,
Plaintiff filed a motion for attorney fees, costs, and expenses (the "Motion").
On August 21, 2026, Defendant filed an opposition. On August 28, 2026,
Plaintiff filed a reply.

II.

LEGAL

STANDARD

California Civil Code section 1794,
subdivision (d) states:

If the buyer prevails in
an action under this section, the buyer shall be allowed by the court to

recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

"The plain wording of the statute requires the trial court to base the fee award upon actual time expended on the case, as long as such fees are reasonably incurred – both from the standpoint of time spent and the amount charged." (*Robertson v. Fleetwood Travel Trailers of California, Inc.* ("Robertson") (2006) 144 Cal.App.4th 785, 817, original italics.) The "prevailing party has the burden of showing that the fees incurred were reasonably necessary to the conduct of the litigation, and were reasonable in amount." (*Id.* at pp. 817-818.) "The amount of an attorney fee to be awarded is a matter within the sound discretion of the trial court." (*Id.* at p. 822.)

"[T]he lodestar adjustment method is the prevailing rule for statutory attorney fee awards to be applied in the absence of clear legislative intent to the contrary[.]" (*Robertson, supra*, 144 Cal.App.4th at p. 818.) The lodestar adjustment method "requires the trial court to first determine a touchstone or lodestar figure based on a careful compilation of the actual time spent and reasonable hourly compensation for each attorney. [Citation] The touchstone figure may then be augmented or diminished by taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award." (*Id.* at p. 819.) However, a trial court is "not required to apply a multiplier." (*Id.* at p. 822, original italics.)

III.

DISCUSSION

Plaintiff moves for an order awarding Plaintiff attorneys' fees, costs, and expenses in the sum of \$35,800.40. (Motion p. 11.) This reflects \$31,704.50 in attorneys' fees, \$2,650.00 in attorneys' fees to review the opposition, draft a reply, and attend the Motion's hearing, and \$1,445.90 for Plaintiff's costs and expenses.

(Motion p. 2.) In reply, Plaintiff reduces the sum requested for fees relating to the opposition, reply, and Motion's hearing to \$2,597.00 but requests an additional \$525.00 in anticipated costs. (Reply p. 2.)

Hourly

Rates:

Plaintiff's counsels billed at rates ranging from \$400.00 to \$560.00 per hour. (Crandall Declaration ¶¶ 11-14.) Plaintiff's counsel's paralegals billed at \$215.00 per hour. (Crandall Declaration ¶ 15.)

In opposition, Defendant argues the hourly rates are excessive and argues the court should reduce these rates to \$400.00 per hour for partners, \$300.00 per hour for associates, and \$175.00 per hour for support staff. (Opposition pp. 6-8.) Defendant's counsel submits a declaration stating that "[t]he only competent evidence before this Court as to the prevailing market rates for non-contingent attorneys litigating Song-Beverly claims in this market is Defendant's evidence that its counsel charges manufacturers in the range of \$225 to \$265 to defend Song-Beverly claims." (Cabibi Declaration ¶ 3.)

Plaintiff's counsel, Sean Crandall, submits a declaration discussing Crandall's, Carey B. Wood's, Destinae Demery's, and Bobby C. Walker's experience. (Crandall Declaration ¶¶ 11-14.)

The court understands Defendant's counsels bill at lower hourly rates. But Defendant submits no evidence showing Defendant's counsels have similar experience to Plaintiff's counsels, such that the hourly rates should be similar. Further, Plaintiff's counsels took this matter on a contingency basis. (Crandall Declaration ¶ 20.)

The court finds the hourly rates requested for Crandall, Wood, Demery, and Walker are reasonable. (See *Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 464, 473-474 [concluding a trial court did not abuse its discretion in finding a \$575 hourly rate was appropriate in a Song-Beverly Consumer Warranty Act action.]

Crandall's declaration contains no information on the paralegals' experience that supports billing at \$215.00 per

hour. (Crandall Declaration ¶ 16.) Further, although Crandall's declaration and the Motion state the paralegals billed at \$215.00 per hour, the submitted billing records show \$210.00 and \$215.00 hourly rates. (Crandall Declaration ¶ 16; Ex. 7 pdf pp. 72-89.)

The court finds \$215.00 per hour is excessive for paralegals and will reduce this sum to \$175.00 per hour.

This results in a \$860.00 reduction of fees.

Finally, Crandall states his billing rate increased to \$515.00 per hour in March 2025. (Crandall Declaration ¶ 11.) The submitted billing records show Crandall charging \$515.00 per hour on October 22, 2024, then \$500.00 per hour, and then \$515.00 per hour again starting in January 2025. (Crandall Declaration Ex. 7 pdf pp. 75-76.) Based on Crandall's declaration, this billing change should not have occurred until March 2025. This leads the court to question the accuracy of Crandall's declaration and the submitted billing records. The court reduces the time billed by Crandall before March 2025 to \$500.00 per hour, resulting in a \$67.50 reduction.

Time
Billed:

Plaintiff's counsels and paralegals billed a total of 73.00 hours on this matter, not including time spent reviewing the opposition, drafting a reply, and appearing at the Motion's hearing. (Crandall Declaration Ex. 7 pdf p. 89; Motion p. 2.)

In opposition, Defendant argues Plaintiff's counsel engaged in improper value billing, where Plaintiff's work "reflects what counsel believes the 'value' of that task should be, not the actual time spent." (Opposition p. 9.) Defendant also argues Plaintiff's representation did not require four attorneys to bill on this matter. (Opposition p. 4.)

There is nothing clearly improper about four attorneys billing on this matter. However, the court will reduce or eliminate fees where using multiple attorneys and paralegals appears to have

resulted in duplicative fees.

Some
of the tasks billed are excessive. It is appropriate to reduce a fee award
because of “a lack

of
efficiency in litigating the case and a lack of clarity in tasks performed.”
(See Mikhaeilpoor v.

BMW of North America, LLC (2020) 48 Cal.App.5th 240,
256 [“Further, counsel’s billing entries demonstrate a lack of efficiency in
litigating the case and a lack of clarity in tasks performed. This evidence
supports the trial court’s finding that plaintiff’s counsel failed to act
efficiently.”]) Plaintiff’s counsels are experienced in this area of the law.
Thus, the court will adjust the reflected time to reflect the court’s
understanding that the time billed should reflect Plaintiff’s counsels’
expertise in this area of the law.

Date

Task

Hours Requested

Adjusted Hours

Hourly Rate

04/26/24

Draft & review
Summons, Complaint, Civil Case Cover Sheet and Addendum. Sent for e-filing.

0.40

0.00

\$175.00

07/15/24

Attorney Services -

Reviewed repair orders, AllData, and NHTSA to develop defect definitions based on repair history, relevant and performed TSBs, and ongoing NHTSA investigations.

2.40

2.00

\$500.00

08/27/26

Attorney Services -

Prepared for and attended CMC

1.80

1.00

\$500.00

09/19/24

Attorney Services -

Drafted Plaintiff's first set of written discovery.

2.60

1.50

\$500.00

09/26/24

Receipt and review

of - D's Objections to P's Notice of Deposition of D's PMQ to ensure timely served by statutory deadline

0.10

0.00

\$175.00

10/22/24

Attorney Services -

Performed cursory review of Defendant's discovery responses.

0.20

0.00

\$500.00

11/01/24

Attorney Services -

Drafted meet and-confer letter.

1.50

1.00

\$500.00

12/10/24

Attorney Services -

Continued drafting MTC RFP

3.80

0.60

\$500.00

02/05/25

Attorney Services -

Drafted meet and-confer response letter.

1.40

1.00

\$515.00

02/24/25

Attorney Services -

Continued drafting MTC RFP

0.40

0.00

\$515.00

03/03/25

Attorney Services -

Finished drafting MTC RFP

2.60

0.00

\$515.00

04/21/25

Drafted Documents -

Finalized P's Motion to Compel RFP, Set One and Supporting Papers: draft POS
re the same

0.40

0.00

\$175.00

04/21/25

Attorney Services -

Performed final review and check of MTC RFP. Delivered for filing.

0.60

0.00

\$515.00

07/10/25

Attorney Services -

Drafted MTC RFP reply and all supplemental documents.

2.80

1.00

\$515.00

07/24/25

Attorney Services -

Drafted Plaintiff's IDC statement.

0.80

0.40

\$515.00

06/01/26

Attorney Services -

Discussed hearing with handling associate.

0.20

0.00

\$530.00

07/30/26

Audit of billing

records for attorney billing entries, removal/redacting of privileged and/or sensitive communications; review of staff billing entries audited by paralegal re the same; accounting of events re MAF

0.70

0.30

\$440.00

07/30/26

Cont. draft of MAF

MPA and Dec.

0.60

0.30

\$440.00

(Crandall

Declaration Ex. 7 pdf pp. 72-89.)

The

adjustments above reflect a \$6,864.50 reduction in the requested fees.

The court finds the reasonable

number of hours expended on this matter, not including time billed for reviewing the opposition, preparing a reply, and appearing at the Motion's hearing, was 58.80 hours, at the hourly rates identified above.

Plaintiff requests an additional \$2,597.00 in fees reflecting 3.40 hours for reviewing the opposition and drafting a reply and 1.50 hours preparing for and appearing at the Motion's hearing, at \$530.00 per hour. (Reply p. 2; Crandall Supplemental Declaration ¶ 3.)

The court finds this request is excessive given Defendant's opposition raised no complex legal issues. The court grants fees in the reduced sum of \$1,590.00, reflecting 2.0 hours to review the opposition and prepare a reply and 1.0 hour to prepare for and appear at the Motion's hearing, at \$530.00 per hour.

Costs:

Plaintiff requests \$1,445.90 in costs. (Motion p. 2.) Plaintiff states they filed a costs bill on June 15, 2026, and Defendant did not file a timely motion to tax costs. (Motion pp. 10-11.)

In opposition, Defendant does not dispute that Plaintiff is entitled to costs.

In reply, Plaintiff seeks an additional \$525.00 in anticipated costs and expenses related to the court reporter for the Motion's hearing. (Reply p. 2.)

The additional \$525.00 in anticipated costs and expenses relating to the Motion's hearing is not identified in Plaintiff's Memorandum. (Memorandum.) It is also not supported by Crandall's supplemental declaration. (Crandall Declaration ¶¶ 1-3.) The court therefore denies Plaintiff's request for an additional \$525.00 in anticipated costs and expenses.

Plaintiff's request for costs is granted in the sum of \$1,445.90.

IV.

CONCLUSION

For the foregoing reasons, the
request for attorneys' fees is granted in the reduced sum of

\$24,635.00

to be paid by Defendant to Plaintiff's counsel within thirty (30) days of this
order. The request for costs is granted in the sum of \$1,445.90, to be paid by
Defendant to Plaintiff's counsel within thirty (30) days of this order.

Dated: September

4, 2026 _____ Hon.

Eric Harmon

Judge

of the Superior Court